NOTE PURCHASE AND REGISTRATION RIGHTS AGREEMENT (EXCERPT)

This Agreement is dated as of 2023-06-15, among the Issuer and the initial purchasers named on the signature pages hereto (the "Initial Purchasers"), and incorporates a registration statement template last revised prior to the adoption of SEC Release No. 33-10890.

SECTION 1. PURCHASE AND SALE OF THE NOTES

Section 1.01. The Issuer agrees to issue and sell to the Initial Purchasers, and the Initial Purchasers, severally and not jointly, agree to purchase from the Issuer, the entire 175,000,000.00 aggregate principal amount of the Notes, at a purchase price equal to 100% of the principal amount thereof, less the Initial Purchasers' discount set forth in Schedule I hereto (Schedule omitted from this excerpt).

Section 1.02 (Resales). The Initial Purchasers propose to resell the Notes, upon the terms and subject to the conditions set forth herein, at various times, to persons reasonably believed to be "qualified institutional buyers" in reliance on Rule 144A, and outside the United States to non-U.S. persons in reliance on Regulation S, in each case under the Securities Act.

SECTION 2. REPRESENTATIONS AND WARRANTIES OF THE ISSUER

Section 2.01. The Issuer represents and warrants to each Initial Purchaser that: (a) the Issuer has been duly incorporated and is validly existing as a corporation in good standing; (b) this Agreement and the Notes have been duly authorized and, when executed and delivered, will constitute valid and binding obligations of the Issuer; and (c) the Indenture has been duly authorized and, when executed and delivered, will constitute a valid and binding instrument, enforceable against the Issuer in accordance with its terms.

SECTION 3. REGISTRATION RIGHTS

Section 3.01 (Shelf Registration). The Issuer shall, at its cost, use commercially reasonable efforts to file with the SEC and cause to become effective a shelf registration statement covering resales of the Notes by the Holders thereof, within the periods specified in Section 3.02, and shall use commercially reasonable efforts to keep such shelf registration statement continuously effective until the earlier of the sale of all Notes covered thereby and the second anniversary of the effective date thereof.

Section 3.02 (Filing and Effectiveness Deadlines). The Issuer shall use commercially reasonable efforts to file the shelf registration statement within 90 days after the Issue Date and to cause it to become effective within 210 days after the Issue Date.

Section 3.03 (Registration Default). If (a) the shelf registration statement has not been filed on or prior to the date specified in Section 3.02, (b) the shelf registration statement has not been declared effective on or prior to the date specified in Section 3.02, or (c) the shelf registration statement ceases to be effective or usable for resales for more than the permitted number of days in any twelve-month period (each, a "Registration Default"), then additional interest shall accrue on the Notes, at a rate escalating according to the schedule set forth in this Section 3.03, for each day during the period of such Registration Default, until the earlier of the cure of such Registration Default and the second anniversary of the Issue Date.

SECTION 4. INDEMNIFICATION

Section 4.01 (Indemnification by the Issuer). The Issuer agrees to indemnify and hold harmless each Initial

Purchaser, its directors, officers, employees, agents and each person who controls any Initial Purchaser, from and against any losses, claims, damages or liabilities arising out of or based upon any untrue statement or alleged untrue statement of a material fact contained in any registration statement, or any omission or alleged omission to state therein a material fact required to be stated therein, except insofar as such losses arise out of information furnished in writing to the Issuer by such Initial Purchaser expressly for use therein.

Section 4.02 (Contribution). If the indemnification provided for in Section 4.01 is unavailable to an indemnified party or insufficient in respect of any losses, the Issuer shall contribute to the amount paid or payable by such indemnified party as a result of such losses in such proportion as is appropriate to reflect the relative fault of the Issuer, on the one hand, and the Initial Purchasers, on the other hand.

SECTION 5. ADDITIONAL DISCLOSURE UNDERTAKINGS

Exhibit C. Ratio of Earnings to Fixed Charges. The Issuer shall include, in each Exchange Act periodic report, a table setting forth the ratio of earnings to fixed charges for the five most recently completed fiscal years and the most recent interim period, computed on the basis set forth in this Exhibit C.

NOTE: SEC Release No. 33-10890 (Financial Disclosures About Guarantors and Issuers of Guaranteed Securities and Affiliates Whose Securities Collateralize a Registrant's Securities) eliminated the Ratio of Earnings to Fixed Charges disclosure requirement (former Item 503(d) of Regulation S-K / Rule 3-14 of Regulation S-X) for fiscal years ending on or after January 4, 2021, subject to a compliance transition. This Agreement's own 2026 dating is well after that transition; Exhibit C as drafted reproduces a stale pre-Release template.

SECTION 6. MISCELLANEOUS

Section 6.01. This Agreement shall be governed by, and construed in accordance with, the laws of the State of New York. This Agreement may be executed in counterparts and by facsimile or other electronic transmission, each of which shall be deemed an original. No provision of this Agreement may be amended or waived except by an instrument in writing signed by the Issuer and the Holders of a majority in principal amount of the Notes then outstanding.

SECTION 1A. CLOSING

Section 1.03 (Closing). The closing of the purchase and sale of the Notes (the "Closing") shall take place at the offices of counsel to the Initial Purchasers, or at such other place as the Issuer and the Initial Purchasers may agree, at such time as is customary for transactions of this kind, against payment by the Initial Purchasers of the purchase price for the Notes by wire transfer of immediately available funds to the account designated by the Issuer.

Section 1.04 (Conditions to Closing). The obligation of the Initial Purchasers to purchase the Notes at the Closing is subject to the satisfaction, on or prior to the Closing, of each of the following conditions: (a) the representations and warranties of the Issuer contained herein shall be true and correct as of the Closing; (b) the Issuer shall have performed all of its obligations hereunder required to be performed at or prior to the Closing; (c) the Initial Purchasers shall have received an opinion of counsel to the Issuer, in form and substance reasonably satisfactory to the Initial Purchasers, addressing the matters customarily addressed in Rule 144A note offerings of this kind; (d) the Initial Purchasers shall have received a certificate of an Officer of the Issuer confirming the matters in clauses (a) and (b); and (e) the Indenture, the Notes and this Agreement shall have been duly executed and delivered by the

parties thereto.

Section 1.05 (Expenses). Whether or not the Closing occurs, the Issuer shall pay all costs and expenses incident to the performance of its obligations under this Agreement, including (a) the fees, disbursements and expenses of the Issuer's counsel and accountants; (b) the cost of printing or reproducing this Agreement, the Indenture, the Notes and any offering memorandum used in connection with the offer and sale of the Notes; (c) the fees and expenses of the Trustee and its counsel; (d) any fees charged by rating agencies for rating the Notes; and (e) the reasonable fees and disbursements of counsel to the Initial Purchasers incurred in connection with the qualification of the Notes for offer and sale under the securities or "blue sky" laws of the several jurisdictions designated by the Initial Purchasers.

SECTION 2A. FURTHER REPRESENTATIONS AND WARRANTIES

Section 2.02 (No Conflicts). The execution, delivery and performance of this Agreement and the Indenture by the Issuer, and the issuance and sale of the Notes, will not conflict with or constitute a breach of, or default under, the certificate of incorporation or bylaws of the Issuer, any agreement or instrument to which the Issuer is a party or by which it is bound, or any statute, rule, regulation or order of any governmental agency or body or any court having jurisdiction over the Issuer.

Section 2.03 (No Registration Required for Initial Sale). Assuming the accuracy of the Initial Purchasers' representations and warranties, and their compliance with their respective agreements, contained in this Agreement, it is not necessary in connection with the offer, sale and delivery of the Notes to the Initial Purchasers, and to each subsequent purchaser thereof by the Initial Purchasers in the manner contemplated by this Agreement, to register the Notes under the Securities Act.

Section 2.04 (Representations of the Initial Purchasers). Each Initial Purchaser represents and warrants to, and agrees with, the Issuer that (a) it is purchasing the Notes for resale in reliance on Rule 144A and Regulation S, in each case in transactions not requiring registration under the Securities Act, and (b) it has not offered or sold, and will not offer or sell, any Notes except in accordance with Rule 144A, Regulation S or another applicable exemption from the registration requirements of the Securities Act.

SECTION 3A. REGISTRATION PROCEDURES

Section 3.04 (Registration Procedures). In connection with its obligations under Section 3.01, the Issuer shall as expeditiously as reasonably practicable: (a) prepare and file with the SEC a registration statement and use commercially reasonable efforts to cause such registration statement to become effective; (b) prepare and file with the SEC such amendments and supplements to such registration statement and the prospectus used in connection therewith as may be necessary to keep such registration statement effective and to comply with the provisions of the Securities Act; (c) furnish to each Holder of Notes covered by such registration statement, without charge, as many copies of the prospectus included in such registration statement and any amendment or supplement thereto as such Holder may reasonably request; (d) use commercially reasonable efforts to register or qualify the Notes under all applicable state securities or "blue sky" laws of such jurisdictions as any Holder reasonably requests; (e) notify each Holder of Notes covered by such registration statement, promptly after the Issuer receives notice thereof, of the issuance by the SEC of any stop order suspending the effectiveness of such registration statement or of any order preventing or suspending the use of any preliminary or final prospectus, or the initiation of any proceedings for that

purpose; (f) use commercially reasonable efforts to obtain the withdrawal of any order suspending the effectiveness of such registration statement at the earliest practicable date; (g) if requested by any Holder, promptly incorporate in a prospectus supplement or post-effective amendment such information as such Holder reasonably requests to be included therein; (h) furnish to each Holder, upon request, a copy of the registration statement and each amendment thereto, including financial statements and schedules, all documents incorporated by reference therein and all exhibits; (i) make available for inspection by a representative of the Holders, and any attorney or accountant retained by the Holders, all financial and other records, pertinent corporate documents and properties of the Issuer, and cause the Issuer's officers, directors and employees to supply all information reasonably requested in connection with such registration statement; (j) cause all Notes covered by such registration statement to be listed on each securities exchange, if any, on which similar securities issued by the Issuer are then listed; (k) provide a CUSIP number for the Notes covered by such registration statement not later than the effective date thereof; (l) cooperate with the Holders and the managing underwriters, if any, to facilitate the timely preparation and delivery of certificates representing Notes to be sold under such registration statement; (m) enter into such customary agreements and take all other actions as any Holder participating in an underwritten offering may reasonably request to expedite or facilitate the disposition of such Notes; (n) obtain a customary comfort letter from the Issuer's independent public accountants and customary opinions of counsel addressed to each participating Holder and underwriter, if any; (o) promptly notify each Holder of the happening of any event as a result of which the prospectus included in such registration statement contains an untrue statement of a material fact or omits to state a material fact required to be stated therein, and promptly prepare a supplement or amendment to correct such statement or omission; (p) otherwise use commercially reasonable efforts to comply with all applicable rules and regulations of the SEC; and (q) cause the Indenture to be qualified under the Trust Indenture Act not later than the effective date of the first registration statement required by this Agreement.

Section 3.05 (Additional Interest Rate Schedule). Additional Interest accrues on the Notes, from and including the date on which any Registration Default occurs to but excluding the date on which all Registration Defaults have been cured, at a rate of 0.25% per annum for the first 90-day period of such Registration Default, increasing by an additional 0.25% per annum at the beginning of each subsequent 90-day period, up to a maximum aggregate Additional Interest rate of 1.00% per annum; upon the cure of all Registration Defaults, the accrual of Additional Interest shall cease, without affecting any other rights the Holders may have.

Section 3.06 (Holder Cooperation). No Holder shall be entitled to Additional Interest pursuant to Section 3.05 unless such Holder has provided all information reasonably requested by the Issuer to be included in the shelf registration statement, including a selling security holder questionnaire in a form provided by the Issuer, and any failure by a Holder to provide such information within a reasonable time after request shall not be deemed a Registration Default under Section 3.03 to the extent such registration statement's effectiveness was delayed solely by that Holder's own failure to respond.

Section 3.07 (Suspension Periods). Notwithstanding Section 3.01, the Issuer may, by written notice to the Holders, suspend the use of the prospectus included in the shelf registration statement for a reasonable period not to exceed a specified number of days in the aggregate in any twelve-month period, if the Board of Directors of the Issuer

determines in good faith that the disclosure required in connection with the registration statement would require disclosure of material non-public information not otherwise required to be disclosed, and that such disclosure, or the sale of Notes under the registration statement at that time, would materially and adversely affect a pending or proposed material transaction of the Issuer. Any such suspension period shall not, by itself, constitute a Registration Default under Section 3.03 if it remains within the limit stated in this Section 3.07, but any excess over that limit shall be treated as a period during which the registration statement was not usable for resales for purposes of Section 3.03(c).

Section 3.08 (Free Writing Prospectuses). The Issuer shall not use any free writing prospectus, as defined in Rule 405 under the Securities Act, in connection with the offer and sale of Notes registered under any registration statement filed pursuant to Section 3.01, without the prior written consent of the Holder or Holders on whose behalf such Notes are being offered or sold, unless such free writing prospectus is required to be filed by the Issuer with the SEC.

SECTION 4A. RULE 144A INFORMATION

Section 4.03 (Rule 144A Information). For so long as any Notes remain outstanding and constitute "restricted securities" within the meaning of Rule 144(a)(3) under the Securities Act, the Issuer shall, during any period in which it is not subject to Section 13 or 15(d) of the Exchange Act, upon the request of a Holder, provide to such Holder and to any prospective purchaser of Notes designated by such Holder, the information required to be provided to permit resales of Notes pursuant to Rule 144A(d)(4) under the Securities Act.

SECTION 6A. GENERAL PROVISIONS

Section 6.02 (Notices). All notices and other communications provided for or permitted hereunder shall be made in writing and delivered by hand, first-class mail, electronic mail (with confirmation of receipt) or a nationally recognized overnight courier, to the address of each party set forth on the signature pages hereto or to such other address as such party may designate in writing to the other parties hereto.

Section 6.03 (Successors and Assigns). This Agreement shall inure to the benefit of and be binding upon the successors and assigns of each of the parties, including, without limitation, any successor to the Issuer by operation of the merger, consolidation or asset-transfer provisions of the Indenture, and any subsequent Holder of Notes, without any need for such Holder to become a party to this Agreement.

Section 6.04 (No Third-Party Beneficiaries). Except for the Holders' rights under Section 3 and Section 4, which the Holders may enforce directly, no Person other than the parties hereto and their respective successors and assigns and the Holders shall have any right, remedy or claim under or by reason of this Agreement.

Section 6.05 (Severability). If any term, provision, covenant or restriction of this Agreement is held by a court of competent jurisdiction to be invalid, illegal, void or unenforceable, the remainder of the terms, provisions, covenants and restrictions set forth herein shall remain in full force and effect and shall in no way be affected, impaired or invalidated.

Section 6.06 (Specific Performance). The Issuer acknowledges and agrees that the Initial Purchasers and the Holders would suffer irreparable damage if this Agreement were not performed in accordance with its terms, and that the Initial Purchasers and the Holders shall be entitled to an injunction or injunctions to prevent breaches of this

Agreement and to enforce specifically the terms and provisions hereof, in addition to any other remedy to which they are entitled at law or in equity.

Section 6.07 (Entire Agreement). This Agreement, together with the Indenture and the Purchase Agreement, constitutes the entire agreement and understanding of the parties with respect to the subject matter hereof and supersedes any and all prior agreements and understandings, oral or written, with respect to such subject matter.

Section 6.08 (Headings). The headings in this Agreement are for convenience of reference only and shall not limit or otherwise affect the meaning hereof.

Section 6.09 (No Waiver). No failure or delay by any party in exercising any right, power or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any other right, power or privilege hereunder.

Section 6.10 (Interpretation). All capitalized terms used but not defined in this Agreement have the meanings assigned to them in the Indenture. References to a "Section" or "Article" without further specification refer to a Section or Article of this Agreement unless the context, or an express cross-reference to the Indenture, otherwise requires. The word "including" means "including without limitation."

Section 6.11 (Currency). All payments and calculations under this Agreement, including any Additional Interest, are made and expressed in United States Dollars.

Section 6.12 (Further Assurances). Each party shall execute and deliver such further instruments and documents, and take such further actions, as may be reasonably necessary or appropriate to carry out the purposes and intent of this Agreement.

Section 6.13 (Recapitalization; Reclassification). In the event of any recapitalization, reclassification, reorganization or other similar transaction affecting the Notes, the provisions of this Agreement shall apply, as nearly as reasonably practicable, to any security received in exchange for or in substitution of the Notes in such transaction.

Section 6.14 (Waiver of Jury Trial). EACH PARTY HERETO IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN RESPECT OF ANY LITIGATION DIRECTLY OR INDIRECTLY ARISING OUT OF, UNDER OR IN CONNECTION WITH THIS AGREEMENT.

Section 6.15 (Consent to Jurisdiction). Each party hereto irrevocably submits to the non-exclusive jurisdiction of any New York State or federal court sitting in the Borough of Manhattan, City of New York, over any suit, action or proceeding arising out of or relating to this Agreement, and irrevocably waives, to the fullest extent it may effectively do so, any objection it may now or hereafter have to the laying of venue of any such suit, action or proceeding brought in any such court and any claim that any such suit, action or proceeding has been brought in an inconvenient forum.

SECTION 0. DEFINITIONS

Capitalized terms used in this Agreement and not otherwise defined herein have the meanings given to them in the Indenture, dated as of the Issue Date, between the Issuer and the Trustee named therein. In addition, the following terms have the meanings set forth below.

"Holder" means the registered holder of any Note or, for so long as the Notes are represented by one or more Global

Notes, each owner of a beneficial interest in a Global Note.

"Notes" means the Issuer's Notes described in the Recitals to this Agreement, issued under the Indenture.

"Registration Default" has the meaning set forth in Section 3.03.

"Registration Statement" means the shelf registration statement described in Section 3.01, and any amendment or supplement thereto.

"TIA" means the Trust Indenture Act of 1939, as amended.

SECTION 2B. ADDITIONAL REPRESENTATIONS

Section 2.05 (No Manipulation). Neither the Issuer nor, to its knowledge, any person acting on its behalf has taken, directly or indirectly, any action designed to, or that could reasonably be expected to, cause or result in the stabilization or manipulation of the price of the Notes or any other security of the Issuer in violation of applicable law.

Section 2.06 (No Directed Selling Efforts). Neither the Issuer nor any of its Affiliates, nor any person acting on behalf of any of the foregoing, has engaged or will engage in any directed selling efforts within the meaning of Regulation S with respect to the Notes, and each of them has complied and will comply with the offering restrictions requirement of Regulation S.

Section 2.07 (Solvency). After giving effect to the issuance of the Notes and the application of the proceeds therefrom, the Issuer will be Solvent, as that term is defined in the Indenture.

SECTION 2C. SELLING RESTRICTIONS

Section 2.08 (European Economic Area). Each Initial Purchaser represents and agrees that it has not offered or sold and will not offer or sell any Notes to any retail investor in the European Economic Area, where "retail investor" means a person who is one (or more) of (a) a retail client as defined in the applicable implementing measure of Directive 2014/65/EU, or (b) a customer within the meaning of Directive (EU) 2016/97, where that customer would not qualify as a professional client, or (c) not a qualified investor as defined in Regulation (EU) 2017/1129.

Section 2.09 (United Kingdom). Each Initial Purchaser represents and agrees that (a) it has not offered or sold and will not offer or sell any Notes to any retail investor in the United Kingdom, applying the same retail-investor definition as Section 2.08 as it forms part of United Kingdom domestic law by virtue of the European Union (Withdrawal) Act 2018; (b) it has only communicated or caused to be communicated, and will only communicate or cause to be communicated, an invitation or inducement to engage in investment activity in connection with the Notes in circumstances in which section 21(1) of the Financial Services and Markets Act 2000 does not apply to the Issuer; and (c) it has complied and will comply with all applicable provisions of that Act with respect to anything done by it in relation to the Notes in, from or otherwise involving the United Kingdom.

Section 2.10 (Canada). Each Initial Purchaser represents and agrees that any offer or sale of Notes in Canada shall be made only to purchasers that are both "accredited investors," as defined in National Instrument 45-106 Prospectus Exemptions, and "permitted clients," as defined in National Instrument 31-103 Registration Requirements, Exemptions and Ongoing Registrant Obligations.

Section 2.11 (General). Each Initial Purchaser acknowledges that other than any registration pursuant to Section 3, no action has been or will be taken by the Issuer that would permit an offering of the Notes, or possession or

distribution of any offering material relating to the Notes, in any jurisdiction where action for that purpose is required, and each Initial Purchaser agrees to comply with all applicable laws and regulations in each jurisdiction in which it purchases, offers, sells or delivers Notes or has in its possession or distributes any offering material relating to the Notes.

Section 2.12 (Absence of Certain Changes). Since the date of the most recent audited financial statements referred to in any offering document for the Notes, there has not been any material adverse change, or any development that would reasonably be expected to result in a material adverse change, in the condition, financial or otherwise, or in the earnings, business affairs or business prospects of the Issuer and its subsidiaries taken as a whole, whether or not arising in the ordinary course of business, except as otherwise disclosed to the Initial Purchasers in writing prior to the Closing.

SECTION 5A. LEGEND REMOVAL

Section 5.02 (Removal of Restrictive Legend). Upon any sale or transfer of a Note pursuant to an effective registration statement under Section 3.01, pursuant to Rule 144 under the Securities Act, or in any other transaction that is exempt from the registration requirements of the Securities Act such that the transferred Note is no longer a "restricted security" as defined in Rule 144(a)(3), the Registrar shall, upon receipt of an Officer's Certificate and, if reasonably requested by the Registrar or the Trustee, an Opinion of Counsel to that effect, permit the Holder thereof to exchange such Note for a Note that does not bear the Private Placement Legend, and the Trustee shall authenticate and deliver a Note that does not bear such legend in accordance with the Indenture.

Section 5.03 (No Obligation to Register Legend Removal). Nothing in this Section 5 requires the Issuer to file a registration statement solely for the purpose of legend removal, and legend removal under Section 5.02 in reliance on Rule 144 or another exemption does not itself constitute, and does not substitute for, the registration obligations of the Issuer under Section 3.

SECTION 4B. INDEMNIFICATION PROCEDURES

Section 4.04 (Notice and Procedure). Promptly after receipt by an indemnified party of notice of any claim as to which indemnity may be sought under Section 4.01, such indemnified party shall notify the Issuer in writing of the commencement thereof, but the omission to so notify the Issuer shall not relieve the Issuer from any liability that it may have to any indemnified party under Section 4.01 except to the extent the Issuer is actually prejudiced by such failure to notify. The Issuer shall be entitled to participate in and, to the extent it elects to do so, to assume the defense of any such claim with counsel reasonably satisfactory to the indemnified party, and after notice from the Issuer of its election to assume such defense, the Issuer shall not be liable for any legal expenses subsequently incurred by such indemnified party in connection with such defense, except that the indemnified party shall retain the right to employ separate counsel at the Issuer's expense if representation of both parties by the same counsel would be inappropriate due to actual or potential conflicting interests between them.

Section 4.05 (Contribution Limitation). No indemnified party shall settle any claim as to which indemnity has been sought under Section 4.01 without the prior written consent of the Issuer, which consent shall not be unreasonably withheld or delayed, and the Issuer shall not be liable for any settlement of any such claim effected without its written consent. The Issuer's obligations under Section 4.01 and Section 4.02, taken together, shall not exceed the

amount by which the total price at which the Notes sold to the Initial Purchasers were resold to the public exceeds the amount of any damages that the Initial Purchasers have otherwise been required to pay by reason of such untrue statement or omission.

Section 4.06 (Survival). The indemnity and contribution agreements contained in Section 4.01 and Section 4.02, and the representations and warranties of the Issuer contained in Section 2, shall remain operative and in full force and effect regardless of (a) any investigation made by or on behalf of any Initial Purchaser or any indemnified party, (b) acceptance of the Notes and payment therefor, or (c) any termination of this Agreement, and shall survive the delivery of and payment for the Notes.

SECTION 2D. ADDITIONAL COVENANTS OF THE ISSUER

Section 2.13 (Use of Proceeds). The Issuer shall apply the net proceeds of the offering of the Notes as described under "Use of Proceeds" in the Offering Memorandum, and shall not apply such proceeds in any manner that would require the registration of the Notes under the Securities Act or that would cause the Issuer to be, or to become, an "investment company" required to register under the Investment Company Act.

Section 2.14 (DTC Eligibility). The Issuer shall use commercially reasonable efforts to cause the Notes to be eligible for clearance and settlement through the Depositary, and shall cooperate with the Initial Purchasers and the Trustee in providing any information and documentation the Depositary reasonably requires in connection with making the Notes so eligible.

Section 2.15 (Rating Agency Notification). The Issuer shall use commercially reasonable efforts to obtain and maintain a rating of the Notes from each Rating Agency, and shall provide each Rating Agency with the information such Rating Agency reasonably requests in connection with rating the Notes; provided that the Issuer's obligations under this Section 2.12 do not guarantee the receipt or maintenance of any particular rating, or any rating at all, and the failure to obtain or maintain any particular rating is not, by itself, a breach of this Agreement.

SECTION 2G. ADDITIONAL COVENANTS - TAXES AND QUALIFICATION

Section 2.16 (Blue Sky Qualification). The Issuer shall arrange, if required, for the qualification of the Notes for offer and sale under the securities or "blue sky" laws of such jurisdictions in the United States as the Initial Purchasers may reasonably designate, and shall maintain such qualifications in effect for as long as reasonably necessary to complete the resale of the Notes by the Initial Purchasers; provided that the Issuer shall not be required to (a) qualify as a foreign corporation or as a dealer in securities in any jurisdiction where it is not now so qualified, (b) file any general consent to service of process in any such jurisdiction, or (c) subject itself to taxation in any such jurisdiction if it is not now so subject.

Section 2.17 (Stamp and Other Taxes). The Issuer shall pay all stamp, documentary, transfer or similar taxes, if any, that may be payable in connection with the initial issuance and sale of the Notes to the Initial Purchasers and the initial resale of the Notes by the Initial Purchasers in the manner contemplated by this Agreement, and shall hold each Initial Purchaser harmless against any liability for any such taxes; the Issuer's obligations under this Section 2.17 do not extend to any tax arising from a subsequent transfer of the Notes by any Holder other than an Initial Purchaser.

SECTION 4C. INDEMNIFICATION BY THE INITIAL PURCHASERS

Section 4.07 (Indemnification by the Initial Purchasers). Each Initial Purchaser, severally and not jointly, agrees to indemnify and hold harmless the Issuer, its directors and officers, and each Person, if any, who controls the Issuer within the meaning of Section 15 of the Securities Act or Section 20 of the Exchange Act, to the same extent as the indemnity given by the Issuer to the Initial Purchasers under Section 4.01, but only with respect to written information furnished to the Issuer by such Initial Purchaser expressly for use in the Offering Memorandum (such Initial Purchaser's "Initial Purchaser Information"); the parties agree that the only Initial Purchaser Information furnished by any Initial Purchaser consists of the statements concerning the terms of the offering by the Initial Purchasers set forth on the cover page and in the underwriting discount paragraph of the plan of distribution section of the Offering Memorandum. This Section 4.07's procedures are governed by Section 4.04 and Section 4.05, applied as though each reference therein to the Issuer were instead a reference to the applicable Initial Purchaser, and vice versa.

SECTION 6G. PUBLICITY AND CONFIDENTIALITY

Section 6.16 (Publicity). Neither the Issuer nor any Initial Purchaser shall issue any press release or make any other public announcement concerning the transactions contemplated by this Agreement without the prior consent of the other parties, which consent shall not be unreasonably withheld or delayed, except as such release or announcement may be required by applicable law or the rules of any securities exchange, in which case the party required to make such release or announcement shall use reasonable efforts to allow the other parties reasonable time to comment on such release or announcement in advance of its issuance.

Section 6.17 (Confidentiality). Each Initial Purchaser agrees to keep confidential, and not disclose to any Person other than its own employees, agents and advisors with a need to know, any non-public information regarding the Issuer and its Restricted Subsidiaries furnished to it in connection with the offering of the Notes, except (a) as required by applicable law, regulation or legal process, (b) to the extent such information becomes publicly available other than as a result of a breach of this Section 6.17, or (c) to the extent necessary to enforce its rights under this Agreement, the Indenture or the Notes.

Section 6.18 (Termination). This Agreement may be terminated at any time prior to the Closing (a) by any Initial Purchaser as to itself, if any of the conditions specified in Section 1.04 is not satisfied when and as required, or (b) by the Issuer and the Initial Purchasers, by mutual written consent. Notwithstanding any such termination, Section 1.05 (Expenses), Section 4 (Indemnification) and this Section 6 shall survive and remain in full force and effect.

Section 6.19 (Time of the Essence). Time is of the essence in the performance of each party's obligations under this Agreement, including the delivery of any notice, certificate, opinion or other document required to be delivered by a stated deadline under Section 1.04, Section 3 or Section 4.

SECTION 2H. LISTING

Section 2.18 (No Listing Obligation). The Issuer is not obligated under this Agreement to list the Notes on any securities exchange, and the Issuer's failure to obtain or maintain any such listing is not a breach of this Agreement; if the Issuer elects to seek a listing of the Notes on any securities exchange, the Issuer shall use commercially reasonable efforts to obtain and maintain such listing, and shall promptly notify the Trustee and the Initial Purchasers of any change in the Notes' listing status.

SECTION 6H. NO PERSONAL LIABILITY

Section 6.20 (No Personal Liability of Directors, Officers, Employees and Stockholders). No past, present or future director, officer, employee, incorporator or stockholder of the Issuer, as such, shall have any liability for any obligations of the Issuer under this Agreement, for any claim based on, in respect of, or by reason of, such obligations or their creation, exactly as Section 13.09 of the Indenture provides with respect to the Notes and the Indenture; each Initial Purchaser, by executing this Agreement, waives and releases all such liability, as part of the consideration for the Issuer's agreements herein.